

## **CHICKASAW TRIBAL LEGISLATURE**

### **Permanent Resolution Number 22-003**

#### **Amendments to Title 2, Chapter 5 Article G of the Chickasaw Nation Code (Right to Work Act)**

**WHEREAS,** in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

**WHEREAS,** in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

**WHEREAS,** in accordance with Amendment V to the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature may confer jurisdiction on the Judicial Department of the Nation, and

**WHEREAS,** the individual freedom of choice in the pursuit of employment in and on Nation's Indian Country (18 USC Section 1151) should be encouraged as a matter of the public policy and law of the Nation; and

**WHEREAS,** the right to work should not be subject to undue restraint, coercion, or in any way infringed, based upon membership in, affiliation with, or financial support of a labor organization, or upon the refusal to join, affiliate with, or financially or otherwise support a labor organization.

**NOW, THEREFORE, BE IT RESOLVED,** that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 5, Article G of the Chickasaw Nation Code:

### **"CHICKASAW NATION CODE**

#### **TITLE 2**

#### **"2. ADMINISTRATION OF TRIBAL AFFAIRS AND GOVERNMENT"**

#### **CHAPTER 5**

#### **EMPLOYEES AND PERSONNEL POLICIES**

#### **ARTICLE G**

#### **RIGHT TO WORK**

**SECTION 2-570.1**

**SHORT TITLE.**

This Title 2, Chapter 5, Article G shall be known and may be cited as the "Right to Work Act of 2005" ("Act").

**SECTION 2-570.2**

**PARTICIPATION IN LABOR ORGANIZATION AS  
CONDITION OF EMPLOYMENT PROHIBITED.**

A. As used in this Act, "Labor Organization" means any organization of any kind, or agency or employee representation committee or union, that exists for the purpose, in whole or in part, of dealing with employers concerning wages, rates of pay, hours of work, other conditions of employment, or other forms of compensation.

B. No person shall be required, as a condition of employment or continuation of employment to:

1. resign or refrain from voluntary membership in, voluntary affiliation with, or voluntary financial support of a Labor Organization;
2. become or remain a member of a Labor Organization;
3. pay any dues, fees, assessments, or other charges of any kind or amount to a Labor Organization;
4. pay to any charity or other third party, in lieu of such payments, any amount equivalent to or pro rata portion of dues, fees assessments, or other charges regularly required of members of a Labor Organization; or
5. be recommended, approved, referred, or cleared by or through a Labor Organization.

C. It shall be unlawful to deduct from the wages, earnings, or compensation of an employee any union dues, fees, assessments, or other charges to be held for, transferred to, or paid over to a Labor Organization unless the employee has first authorized such deduction.

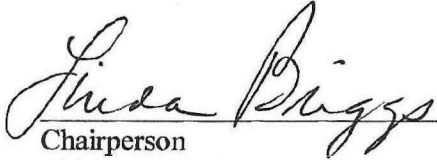
D. The provisions of this Act shall apply to all employment contracts entered into after the effective date of this Act and shall apply to any renewal or extension of any existing contract.

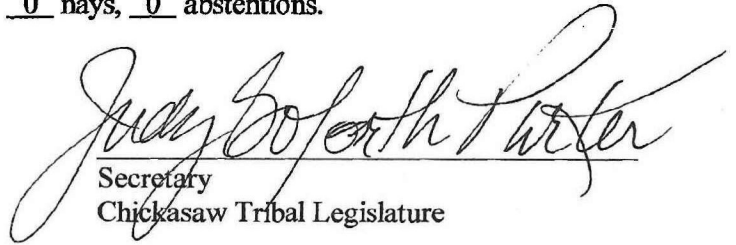
E. The courts of the Chickasaw Nation are vested with authority through injunctive relief to enforce the provisions of this Act. Any contract or agreement entered into in violation of this Act shall be declared by the courts of the Nation to be null and void upon application by proper case filing and judicial review. Any violation of this Act may be prosecuted by the Nation

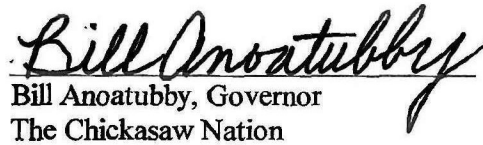
against any legal entity, by petition and case filing with trial before a tribal judge with a civil burden of proof for civil fine and/or judgment of up to \$5,000.00 for any violation of this Act. Any writing addressed to the Nation and delivered thereto, shall be deemed consent to the jurisdiction of the Nation for purposes of this Act.

F. No part of this Act shall be deemed to waive the sovereign immunity of the Nation or consent to the jurisdiction of any federally created entity."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on November 19, 2004, by a vote of 13 ayes, 0 nays, 0 abstentions.

  
Chairperson  
Chickasaw Tribal Legislature

  
Secretary  
Chickasaw Tribal Legislature

Concur:   
Bill Anoatubby, Governor  
The Chickasaw Nation

Date: NOV 20 2004

**CHICKASAW TRIBAL LEGISLATURE**  
**Permanent Resolution Number 22-003**  
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**(Right to Work Act)**

**Explanation:** Employees of the Chickasaw Nation should be guaranteed the right to work without the requirement that they pay dues or have membership in any society, union or other entity. This Act makes any contract requiring membership or payment of dues to be null and void and creates a civil fine mechanism and judicial application available to address violations of the Act.

**Requested By:** Bill Anoatubby, Governor  
The Chickasaw Nation

**Presented By:** Tim Colbert, Chairman  
Court Development Ad Hoc Committee